

**PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR JULY 17, 2026 AT 8:30 A.M.**

15. S-CV-0055169 NIJJAR, SULINDER v. CENTRAL OREGON TRUCKING CO

**NOTE: If oral argument is requested in this case, it shall be heard on
JULY 17, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Defendant Sierra Pacific Industries, Inc.'s Demurrer to Plaintiff's Fifth Cause of
Action in the Second Amended Complaint (SAC)

Ruling on Request for Judicial Notice

Plaintiff's request for judicial notice is denied.

Ruling on Demurrer

The demurrer is sustained. A review of the allegations within the SAC show that plaintiff has not sufficiently alleged compliance with Code of Civil Procedure section 377.32. While the section does not require the filing of such an affidavit prior to commencing an action, it does subject plaintiff's complaint to a plea in abatement. (*Parsons v. Tickner* (1995) 31 Cal.App.4th 1513, 1524.) The plea in abatement may be raised by the filing of a demurrer. (*The Rossdale Group, LLC v. Walton* (2017) 12 Cal.App.5th 936, 943.) The fifth cause of action is abated until such time as plaintiff establishes compliance with Section 377.32. Plaintiff is afforded leave to amend the SAC when allegations of compliance may be properly alleged.

Plaintiff-In-Intervention Securitas Security Services USA, Inc.'s Motion for Leave to
File Complaint-In-Intervention

The unopposed motion is granted.

Plaintiff-In-Intervention shall file and serve the complaint-in-intervention by July 27, 2026.

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